

Terms of Engagement with LeMoyne-Owen College

Draft for discussion. Not legal advice. Have a Memphis small-business or sports and education attorney finalize before anyone signs.

MOTG: Magicians on the Green [LLC once formed], an independent supporter brand operated by Dominique Worthen.

The College: LeMoyne-Owen College, including its Athletics and Advancement offices.

① WHAT MOTG IS

MOTG is a private supporter and booster brand created by Coach Worthen to promote the LeMoyne-Owen golf program and rally fans behind it. MOTG is a separate business. It is not the College, does not speak for the College, and is not an official College store unless this document says otherwise.

② USE OF NAME AND MARKS

The College gives MOTG permission to reference the "Magicians" name and the golf program on merchandise and marketing, on these terms: non-exclusive, revocable with written notice, subject to the College's reasonable brand review.

MOTG's own original artwork stays owned by MOTG. That includes the "Magicians on the Green" wordmark, the wizard character, and the M logomark as drawn by or for MOTG. If this deal ends, MOTG keeps its own artwork and the College keeps its own marks.

③ WHAT THE GOLF TEAM GETS

MOTG supports the golf program in two ways:

- **10 percent of the sale price** of every merchandise item, before shipping and tax.
- A **guaranteed minimum of \$1,000 per year** to the program. If 10 percent of sales totals less than \$1,000 in a year, MOTG pays the difference so the team still receives at least \$1,000 that year.

Payments go to the program through the College's Advancement office and are reported quarterly. MOTG is a for-profit business and keeps its remaining margin. MOTG will not publicly claim "100 percent goes to the team" for merchandise sales. The honest public line is "10 percent of every purchase supports LeMoyne-Owen golf."

④ DONATIONS GO STRAIGHT TO THE COLLEGE

Any charitable donation MOTG points people toward goes directly to the College's official giving page, earmarked for golf. MOTG does not collect, hold, or control donated money. This keeps donations tax-deductible for the giver and keeps team funds under the College's control.

5 PLAYERS (NAME, IMAGE, LIKENESS)

MOTG will not use any student-athlete's name, photo, or likeness to sell or promote anything without a signed release from that player and approval from the College's compliance officer.

6 INDEPENDENCE AND LIABILITY

MOTG runs its own store, pays its own costs, carries its own liability insurance (including for any tournament or event), and handles its own taxes and legal compliance. The College is not responsible for MOTG's operations, and MOTG is not responsible for the College's.

7 COACH WORTHEN'S ROLE

Coach Worthen's involvement in MOTG has been disclosed to and approved by the College under its conflict-of-interest and outside-employment policies. Approvals: Athletic Director _____, Advancement _____, Compliance _____.

8 TERM AND EXIT

This runs for **[one year]** and renews **[automatically]** unless either side gives **[30 or 60]** days written notice. If it ends: MOTG stops using the "Magicians" name on new products, may sell through existing inventory for **[__ days]**, keeps its own brand artwork, and any support already given to the team stays with the team.

9 SIGNATURES

FOR MOTG • DATE

FOR LEMOYNE-OWEN COLLEGE • TITLE • DATE

Why this protects you: it puts your permission to use the Magicians name in writing, it confirms your college employer knows and approves (protecting your job), it makes clear you personally own the brand you built, and it says exactly what the team gets so no one can later claim you misled donors or the school. Without a document like this, the college can revoke everything on a phone call and you have no ground to stand on.